		Plaintiff contends the Arbitration Agreement is substantively unconscionable because the requirement that disputes be heard by a retired California Superior Court judge allegedly imposes excessive arbitration costs. However, the Arbitration Agreement does not limit the arbitrator to a retired California Superior Court judge, but also permits the parties to mutually select another qualified arbitrator. (Chinnis Decl., Ex. 1, [Arbitration Agreement, ¶ 4].) Further, Plaintiff identifies no provision requiring Plaintiff to bear arbitration costs or fees beyond those that would otherwise be incurred in court. Nor does Plaintiff identify any provision rendering the agreement one-sided or lacking mutuality. To the contrary, the Arbitration Agreement mutually requires both Plaintiff and Defendants to arbitrate all employment-related disputes. (Id., Arbitration Agreement, ¶ 2.) Plaintiff has failed to demonstrate substantive unconscionability. Because Plaintiff has failed to demonstrate substantive unconscionability, the minimal procedural unconscionability present is insufficient to render the Arbitration Agreement unenforceable. Accordingly, the motion is GRANTED. The Court STAYS the action pending arbitration. (9 U.S.C.A. § 3; Code Civ. Proc. § 1281.4.) Arbitration Status Review Hearing set for December 17, 2026 at 1:30 p.m. The Case Management Conference is taken off-calendar. *Defendants to give notice*.
112	BKC Entertainment LLC vs. K1 Speed Franchising, Inc., 23-01317103	Plaintiff BKC Entertainment LLC ("BKC" or "Plaintiff") moves for summary adjudication of its first, second, and third causes of action against defendants K1 Speed Franchising, Inc. ("K1"), David Danglard, and Uli Perez (together, "Defendants"). Plaintiff argues it is entitled to summary adjudication of its three causes of action under the California Franchise Investment Law (CFIL) because there is no material dispute that K1 failed to register its franchise

		offerings with the California Department of Financial Protection and Innovation (DFPI) prior to offering and selling franchises to Plaintiff, failed to disclose the identity of affiliated companies in its Franchise Disclosure Document (FDD) as required under Corporations Code section 31201, and provided Plaintiff with a 5-year pro forma statement that was not included in Item 19 of its FDD in violation of Corporations Code section 31201. Defendants argue that the instant motion is procedurally improper because the arguments and facts raised by Plaintiff would not dispose of entire causes of action, given that no evidence regarding Plaintiff's damages has been presented. "A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c(f)(1).) "A plaintiff can obtain summary adjudication of a cause of action only by proving 'each element of the cause of action entitling the party to judgment on that cause of action.' " (*Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241.) Thus, if damages are an element of a cause of action, "a plaintiff cannot obtain judgment on [that] cause of action in an amount of damages to be determined later." (*Ibid*.) Section 437c was amended in 1990 to limit summary adjudication motions to a cause of action, an affirmative defense, a claim for punitive damages, or an issue of duty, and "[t]he clear purpose of the amendment was to ' "stop the practice of adjudication of facts or adjudication of issues that do not completely dispose of a cause of action for a defense." ' " (*Id*. at p. 242.) "A determination of liability alone does not completely dispose of the cause of action." (*Ibid*.) Here, Plaintiff contends that Defendants violated sections 31110 and 31201 of the CFIL. Section 31300(a) provides for a private right of action against any person who violates section 31110. Specifically, it provides, in relevant part, that any person

		who violates section 31110 "shall be liable to the franchisee or subfranchisor, who may sue for damages caused thereby. . . ." Similarly, section 31301, which gives rise to a private right of action for violations of section 31201, provides that any person who violates section 31201 "shall be liable to any person (not knowing or having cause to believe that such statement was false or misleading) who, while relying upon such statement shall have purchased a franchise, for damages. . . ." Sections 31300 and 31301 establish that damages are an element of Plaintiff's causes of action for violations of sections 31110 and 31201. However, Plaintiff has not submitted any evidence of its damages in support of its motion. Thus, Plaintiff has not met its burden to show it is entitled to summary adjudication of the first, second, or third causes of action. Plaintiff argues that its motion turns on whether the statutory violations have been established and not whether all issues relating to remedy have been resolved. This ignores the fact that summary adjudication cannot be granted unless it completely disposes of a cause of action. To prevail on its causes of action under sections 31300 and 31301, Plaintiff must not only establish that Defendants violated the alleged provisions, but also that Plaintiff suffered damages as a result of those violations. Plaintiff also cites to *Andalon v. Superior Court* (1984) 162 Cal.App.3d 600 to argue that summary adjudication is proper on individual elements within a cause of action. Andalon was decided before section 437c was amended in 1990 to limit summary adjudication and is therefore inapplicable here. In light of the above, the motion for summary adjudication is DENIED. *Plaintiff to give notice.*
113	Eizad vs. Izad, 25-01476014	Defendant Hassan Izad ("Defendant") demurs to the entire Complaint, including the: (1) first cause of action for breach of contract, (2) second cause of action for breach of fiduciary duty, (3) third cause of action for negligence, (4) fourth cause of action for fraud, and (5) fifth cause of action for unjust enrichment. (ROA 2.)